

		claims. Accordingly, there is no reasonable probability that Plaintiff will prevail.” (Motion: 5:17-18.) Thereafter, at most, Defendants declare: “Based on the prior adjudication and repeated failure of Plaintiff’s claims, there is no reasonable probability that Plaintiff will prevail in this action.” (¶38 of Huong Bui and Hai Yen Bui Declarations.) Notably absent from the moving papers is any analysis of the claims being asserted or their required elements. Moreover, absent from the Declarations offered by Defendants are any statements disclaiming Plaintiffs’ allegations. Moving party to give notice.
5	Eaton vs. Irvine Parkwood Apartments LLC	Defendants Irvine Parkwood Apartments LLC and Irvine Management Company move to compel Plaintiff Michelle Margot Eaton to arbitrate her claims and to stay this matter. For the following reasons, the motion is GRANTED. <u>Standard on Motions to Compel Arbitration</u> The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (See <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) <u>Applicability of the Federal Arbitration Act (the “FAA”)</u> “The FAA applies to any ‘contract evidencing a transaction involving commerce’ that contains an arbitration provision. [Citations.]” (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 238, quoting the FAA, 9 U.S.C. § 2.) Where a “contract specifies that claims shall be arbitrated ‘pursuant to the FAA’ . . . there is no ambiguity regarding the parties’ intent[;]” they adopted the FAA to govern their arbitration and the FAA controls.” (<i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal.App.4th 1110, 1122.) More specifically, “when an agreement provides that its ‘enforcement’ shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration.” (See <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 346.) Here, the parties agreed that both the procedural and substantive provisions of the FAA shall govern. The agreement provides: “Except as otherwise provided in this Addendum, and notwithstanding any other choice of law provision, the Federal Arbitration Act . . . , including its substantive and procedural provisions, shall govern the interpretation, enforcement, and all proceedings pursuant to or arising out of the Lease and/or this Addendum, including without limitation, any and all questions and disputes regarding the arbitrability.” (Gonzalez Decl., Ex. A at ¶ 1.) As such, both the procedural and substantive provisions of the FAA apply and govern this motion. On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an